



PAGERO

Country Compliance Report: **France**

Information class: Restricted



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Author: Marc Hislop
Approver: Nazar Paradivskyy

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Introduction and document purpose

Pagero Group builds the world's largest, open business network – so you can reach any business, anywhere in the world. No matter how many borders your operations may cross or how many systems you are connected to, we take care of the technical and regulatory requirements across your entire order-to-cash, purchase-to-pay and freight processes. We give you data accuracy and security, transparency and real-time visibility – through a single connection.

At Pagero Group, we believe that technology supports sustainability. That's why we are committed to helping businesses become 100% paperless, supporting resource efficiency, transparency and business continuity.

The main purpose of this country compliance report is to provide the reader with an in-depth analysis of the focus country's laws, regulations, and process with regards to e-invoicing and other trade documents. The analysis considers topics such as business requirements before switching to electronic invoices, e-document creation, e-document distribution, integrity and authenticity, and, finally, e-archiving.

This document guides how Pagero solutions support customers in the focus country to meet local regulations and serves as a supplement to Pagero General E-invoicing Process Description.

The information provided by Deloitte which is part of this material was solely prepared as general information. It was prepared to meet with specific requirements and was not prepared for any other purposes or objectives. Changes in conditions over time may affect the contents of the material and its content. We do not express any opinion or conclusion in this material.



1. Terminology

This section outlines general and country-specific terminology for France, which will be used throughout the whole document.

Term	Explanation
AoR	Business response from the buyer to the supplier regarding the received document, which can be positive (acceptance) or negative (rejection), and must be issued after the validation of the received document with MH
Centralised exchange	In centralised e-invoicing models, the regulator establishes a central infrastructure, sometimes called “HUB”, through which all or part of transactions are routed between the sellers and the buyers. Such a centralised platform will both validate the transactions and act as an exchange engine between the trading parties. Under this model, a direct exchange of fiscally valid e-documents between the regulated taxpayers is not allowed, except under particular circumstances.
Chorus Pro	Central e-invoicing platform, which currently receives and processes B2G e-invoices, and is planned to be extended to support the upcoming B2B e-invoicing mandate
CGI	The general tax code of France
DGFIP	The Tax Administration of France (<i>fr. Direction Générale des Finances publiques</i>).
EN	European Norm is the semantics (content) requirements established by CEF for the EU public procurement
Peppol Access Point	Peppol Service Provider connect users to the Peppol network and exchange electronic documents based on the Peppol specifications. Buyers and suppliers are free to choose their preferred single Access Point provider to connect to all Peppol participants already on the network.
Post-audit	A model where the Trading Partners are allowed to exchange e-invoices and perform obligations without a requirement for prior clearance of such issuance or other actions with the (tax) authorities. Instead, transactions are reported to the authorities after they have taken place

SIRET number	Siret number (Système d'identification du répertoire des établissements) is a unique French business identification number
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2. General overview

This section provides an initial introduction into the local e-Invoicing environment within France, including the types of local e-invoice regulations, go-to governmental and industry bodies, and whether multiple invoicing regimes, that is, varying regulatory requirements, exist for example by industry, business size, or other defining factors.

Item	Commentary
Authorities and other agencies relevant for e-invoicing	• Ministry of the Economy and Finance (policy making) • General Directorate of Public Finance • Agency for State Financial Information - <i>Agence pour l'Informatique Financière de l'État</i> (AIFE) • The French Tax Authority (DGFiP)
Main applicable legislation in respect of e-invoice issuance, exchange, reception and retention	• The French Tax Code • Decree No. 2013-350 dated April 25, 2013 • Ordinance No. 2014-697, dated June 26, 2014 • Decree No. 2016-1478, dated November 2, 2016 • Business Growth and Transformation Law – PACTE (along with the transposition of the Directive 2014/55/EU) • Ordinance No. 2019-359, dated 24 April 2019 • Article 153 of the budget law for 2020 • Amendment no. II-3211, The French government has proposed an amendment to the 2021 budget introducing mandatory B2B e-invoicing



3. E-Invoice status

When considering sending or receiving e-invoices two basic questions should be considered: is invoice equal to paper invoice from the legal perspective; and if there are any situations where e-Invoicing is mandatory for reception or transmission.

Item	Commentary
E-invoice status	• Allowed
Varying invoicing regimes¹	• Different requirements apply to B2B and B2G e-invoicing
e-Invoicing model	• B2B: Post-Audit • B2G: Centralised exchange through Chorus Pro
e-Invoice definition²	• An e-invoice is an invoice created, sent, received and archived in an electronic way • Thus, for an invoice to be qualified as an electronic invoice, the entire invoicing process must be electronic. An invoice that was initially issued on paper and then scanned, sent and received by email is not an e-invoice but a paper invoice. Likewise, an invoice created in electronic form that is sent and received in paper format does not constitute as an e-invoice
Scope of taxpayers the e-document mandate applies to	Mandatory for submitting - Suppliers to contracting authorities - Suppliers to governmental bodies and entities, which are private entities matching the following criteria: - 2017.01.01: large companies³ - 2018.01.01: medium companies - 2019.01.01: SME's - 2020.01.01: micro businesses Mandatory for receiving and processing - Central, regional, and local authorities - Defence and national security entities are exempt

¹ It is possible that a business is required to send e-invoice in some scenarios, and send voluntarily in others

² Differing definitions may exist between different levels of government, or differing legislation, i.e. accounting law and IT law

³ For details on taxpayer categorisation see section 10.1

	New mandate⁴ according to amendment no. II-3211 & Art 153 of the budget law - Starting from <u>01 July 2024</u>: all businesses are required to receive e-invoices and the large-size businesses must start issuing e-invoices - As of <u>01 January 2025</u>: medium-size businesses must start issuing e-invoices - As of <u>01 January 2026</u>: remaining businesses must start issuing e-invoices - Exceptions for certain sectors otherwise exempted from issuing invoices, e.g., education, insurance and banks
Mandatory AoR (document response) process	• Not required • As of 01 July 2024, when the new B2B e-invoicing mandate starts, rejection of invoices will be regulated for those companies in scope of the mandate.
Implementation / roll-out plan	• The timeline of the roll-out plan for B2B will gradually become applicable for companies depending on their size from 1 July 2024 and no later than 1 January 2026 along with a <u>clearance type</u> model

⁴ More information available in a separate Country Compliance Report.



4. Before switching to e-invoices

4.1. IT⁵ registration

The following thresholds apply to the requirement to be registered for a IT number in France:

- Exemption for small businesses – EUR 33.100 / 42.900 / 82.000
- Application of the special scheme for acquisitions by taxable persons not entitled to deduct input tax and by non-taxable legal persons – EUR 10.000
- Application of the special scheme for distance selling – EUR 35.000

Please note that the thresholds stated above are not an exhaustive list of circumstances requiring local IT registration.

French IT numbers have 13 characters [FR + 11 digits]. The last 2 digits constitute a control number. i.e. FR 31832375831

Businesses established outside of the EU and are not in a countries with a signed convention regarding mutual assistance in tax matters with France (except some countries), must appoint a tax representative. While, foreign businesses established within the EU or in countries having a convention regarding mutual assistance in tax matters with France may either register for IT directly or appoint an IT agent.

4.2. Process to switch to e-Invoicing

Even though many countries encourage or even mandate e-Invoicing, there may be specific requirements on the Trading parties – typically the Supplier – before starting an e-Invoicing program. This section provides a brief overview of such requirements.

Item	Commentary
Actions towards authorities, required in order to enable electronic processing instead of conventional processing	• No explicit requirements

⁵ For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

Actions between the trading partners, e.g. customer acceptance, agreement, etc.	• Buyer acceptance is required, this may be done by tacit approval, meaning a lack of any reaction or protest from the receiver (buyer) • An explicit written agreement is highly recommended
Transition period from the moment of starting e-invoicing during which, e.g. parallel invoicing may be allowed	• None

4.3. Outsourcing invoice issuance function

Many companies decide to outsource the issuance process of e-invoicing to third parties who have the necessary infrastructure and knowledge of implementing and executing e-Invoicing. This may be driven by a technical limitation or local regulatory requirements. However, before doing so, it is highly recommended that a supplier investigates whether such outsourcing is permissible and whether any requirements must be fulfilled.

Item	Commentary
Whether outsourcing of invoice issuance (creation) is allowed or not	• Allowed
Whether statement of outsource issuance is required on the invoice	• Recommended • The recommended wording is the following: "Invoiced by A in the name and on behalf of B"
Whether outsourcing agreement is required between the taxpayer and the third-party is performing actions on its behalf	• Not explicitly required but Pagero strongly recommends it.
Content and formality requirements to the Outsourcing agreement between the taxpayer and the third-party	• If the outsourcing agreement is concluded with a third-party established in a country that has a legal instrument on mutual assistance agreement with France: - The supplier must give a mandate to the third party to issue the invoices in his name and on his behalf - The outsourcing agreement must be concluded before the subcontractor starts to invoice on behalf of his client - No other particular formalities are required. It can be written or tacit. However, parties to the agreement must be able to prove its existence if the French Tax Administration ask them to do so. - The content of the outsourcing agreement comes under the freedom of contract, what means that parties to the agreement can introduce any disposal they consider relevant in it.

	• If the outsourcing agreement is concluded with a party established in a non-EU country that has no legal instrument on mutual assistance agreement with France/similar to what is in the EU 2010/24 Directive: - The mandate must be established in a written form. • The supplier must inform DGFIP in written form
Whether any notifications to or derogations from authorities are required in the specific jurisdiction for outsourced issuance	• No explicit requirements if the outsourcing party is established in France or another EU Member state. • Outsourcing to an third-party that is established in a country with which there is no mutual assistance agreement allowed subject to: (1) prior written authorization, (2) prior notification of the authorization to Tax Authority including party details i.e. (address, financial statement etc.)
Whether, and which, requirements exist to the outsourced party to be able to act on behalf of the taxpayer	• No explicit requirements

4.4. Outsourcing invoice receipt function

Due to the unique nature of the AP process, it may be required for the buyer (invoice receiver) to have an explicit agreement, or other permissions to be put in place for Service Providers to conduct invoice receiving functions on behalf of them.

France has no explicit requirements on the outsourcing of the function of receiving invoices (similar to the function to issue invoices as outlined above).



5. Document processing

5.1. Format and other technical requirements

Globally, a multitude of e-Invoicing formats and infrastructures exist. Local regulators often offer or mandate the use of certain formats, standards, or platforms for the transmission or delivery of invoices or other tax-related documents. Pagero has the technical depth and experience to support country-specific technical requirements globally.

Item	B2G	B2B
Mandated document format(s) for exchange with mandated Gov platform(s) and/or between the trading parties	UBL 2.0, UBL 2.1, CII 16B, CPP, Factur-X, PES, PDF (with eSignature), PEPPOL BIS 3.0	- No macros or other self-executable code; otherwise no specific requirements - As of July 2024, must be able to receive in structured format and be EN compatible
Other document format(s) commonly used for exchange between trading parties	N.a.	- EDIFACT, PDF. - As of 2026 simple PDF will be phased out
Mandated platform(s) required to have connection with for e-document processing	Chorus Pro (CPP) - Peppol Access Point: Pagero - See below under section 10.3 for supplier exclusions	N.a.
Other platform(s) relevant for e-document processing	N.a.	N.a.
Schematron(s), XSD schema or other official mechanisms ensuring document content	N.a.	N.a.

Routing ID's / codes or other identifiers used in the jurisdiction for counter-party identification and document exchange	- See below under section 10.2 - N.a.
Other technical aspects	- Only PDF / A3 (Factur-X) and XML formats are accepted for batch submission to Chorus Pro - If a PDF invoice is created as the result of scanning, an eSignature must be applied in order for it to be valid, more information can be found here

5.2. Communication with Chorus Pro

Regulations in France foresee the following options on how e-documents can be communicated with the mandatory infrastructure(s):

Communication options	Commentary
Automated	Automatic transmission via Chorus Pro or via Peppol SP
Manual	Chorus Pro portal
Other options	N.a.

5.3. Issuance and clearance process

This section describes the document issuance and clearance process from the supplier perspective.

5.3.1. Domestic documents

This section describes the process for documents created to be transmitted within the given country

B2B e-invoicing

There are no explicit technical process requirements on e-invoices issuance in France, as B2B e-invoicing follows the post-audit model.

B2G e-invoicing

All French public authorities and institutions can receive e-Invoices through Chorus Pro. This process is explained below:

- The supplier submits the e-document to Chorus Pro. This can be done either directly or through a service provider.
- Chorus Pro performs the validation of the e-document and returns application response to the sender.

- The response can be: received, rejected, ongoing, delivered to the recipient, suspended (waiting for attachments), processed to payment etc.
- This validation is done also against mandatory fields: order reference if requested by the recipient and party identifiers.
- As for the manual connection, it is possible to see the status of the invoice on Chorus Pro. Additionally, an email notification is sent to the supplier once the status of the e-invoice changes.
- Optionally, the recipient might send a return communication to the supplier through Chorus Pro. This can be receipt acknowledgement, document approval or rejection.

5.3.2. Cross-Border

This section describes the requirements for cross-border outbound documents such as sales invoices

Use of e-invoicing in the Cross-Border scenario is not explicitly regulated in France.

5.4. Reception and validation process

This section describes the document reception, validation and acceptance processes from the buyer perspective.

5.4.1. Domestic documents

This section describes the process for documents received for purchases or transactions within the given country

France has no explicit requirement on the private invoice recipient to provide to the supplier a confirmation / notification that an invoice or e-invoice has been received.

5.4.2. Cross-Border

This section describes the requirements for cross-border inbound documents such as purchase invoices

Use of e-invoicing in the Cross-Border scenario is not explicitly regulated in France. However, the encouraged and common practice for foreign suppliers to French public sector is to send e-invoices. E-signature is also a common practice in this scenario.

5.5. AoR (response) process

Return communication from buyer to supplier is optional under the current mandate.

5.6. Chorus Pro validations

Some tax regimes require businesses to send tax documents to a predetermined hub either before, shortly after issuing invoices. Generally, a hub that requires this will send a

reply to the issuer. This reply can be expressed as a clearance/ approval response, rejection, semi approved, etc.

In France, Chorus Pro performs validation of files upon entry and returns application response to the sender. This validation is made also against mandatory fields: order reference if requested by the buyer and party identifiers.

For e-invoices submitted via Peppol, the Chorus Pro does not perform any specific validations, as they must have been performed by the senders Peppol Service Provider.

5.7. Invoice presentation / copy

Some regimes require a visual presentation of the invoice file to be transmitted along with the structured invoice file. This section describes if there is any regulation concerning visual or image-based presentations of invoices as a copy for the original or vice versa.

In France, to distinguish duplicate invoices from originals, the following wording must be used:

- "Copy issued at the request of the buyer" in French « copie délivrée à la demande de l'acheteur »;
- "Copy issued in replacement of the original misplaced or destroyed" in French « copie délivrée en remplacement de l'original égaré ou détruit »

One can use the word "duplicate" in French « duplicata » instead of "copy" (copie). What matters is that the replacement document bears all the information on the original but also a clear indication that it is a copy, intended to replace or replicate the original.

Issuing a PDF Presentation (a human-readable duplicate) when Tax invoices are issued in machine-readable format files can be confusing. To ensure the correct management of original documents, in addition to technical controls, Pagero Online adds "Copy Tax Invoice" on PDF Presentations where Tax invoices have been issued as machine-readable format files.

5.8. Distribution between taxpayers

This section explains how and if trading parties can send invoices between each other. In some cases, hubs also distribute the tax document to the buyer.

Item	Commentary
Push communication	• No explicit requirements
Pull communication	• No explicit requirements
E-mail distribution	• B2B: no explicit requirements, As of July 2024 not allowed • B2G: not allowed, all communication only via CP methods

Webportal⁶	• B2B: allowed via any third-party portal • B2G: possible only via third-party portal connected to CPP
Scanning inbound invoices	• Allowed. See requirements under section 5.10
Printing outbound invoices	• Allowed. See requirements under section 2 and section 5.10

5.9. Rectification process

This section will express the process that needs to be taken when there is an error in an invoice, how it is to be handled, and corrected by both buyer, seller, and if a notification needs to be delivered to the tax authority.

Rectification process	
What are the options to correct an invoice if an incorrect IT rate, exemption or reverse charge is applied on the invoice	• Corrective invoice • Corrective invoices and credit note / new invoice are allowed
What are the options to correct an invoice if the customer returns the goods	• Credit note
What are the options to correct an invoice if the customer paid too much	• Debit note
What are the options to correct an invoice if the supplier agrees to a discount after the invoice was issued to the customer	• Corrective document • Corrective invoices and credit note / new invoice are allowed
What are the options to correct an invoice if the invoice misses data such as name, address, IT number, invoice reference, etc.	• Corrective document • Corrective invoices and credit note / new invoice are allowed
Other scenarios with different correction option	• It is also possible to cancel the wrong invoice via a credit note and to issue a new invoice
Party entitled to issue a credit note if the invoice was issued by the supplier (i.e. no self-billing)	• Supplier
Allowed to draft a 'waiting' document/interim document' in the absence of a purchase invoice and report IT as due and deductible on the basis of this document	• No

⁶

Note, however, that prior to using an external portal, like Pagero's Web portal, Suppliers are required to already have an invoice / invoice data in their internal accounting software. Portals are not designed for the purpose of replacing internal accounting but are a mechanism to make invoices available for the Recipient. Recommended only for businesses issuing fewer than 100 invoices annually.

5.10. Coexistence of paper and electronic invoices

Item	Commentary
Whether parallel invoicing (issuance and exchange of the same document in several formats, e.g. electronically and on paper) is allowed and/or whether there are any regulations surrounding it	- It is not explicitly prohibited, however, is recommended to be avoided - The copy of the invoice must be marked as "copy" to distinguish it from the original invoice. For more information, see section 5.7
Whether the jurisdiction allows for document (e.g. invoice) dematerialization, i.e. destruction of the original paper invoice, for processing and/or archiving	Allowed
Whether any conditions apply, and which, to the dematerialisation	- The reproduction must be identical to the paper invoice, - The digitalized document must be in PDF or PDF/A3 format, - I&A ensured with RGS eSignature or Qualified eSignature / eSeal with a time stamp - Correctly dematerialized paper invoices may be destroyed
Whether the jurisdiction allows for document (e.g. invoice) materialization, i.e. destruction of the original electronic document, for processing and/or archiving	It is not explicitly prohibited
Whether any conditions apply, and which, to the materialisation	- It is required that the trading partners have in place a written process, clearly defining i.e. which document the paper, or the electronic invoice will be deemed as the original invoice valid for IT purposes - The e-invoice must be kept for at least 3 years in its original electronic format. After the next 3 years, the company can choose a storage medium of its choice. It is possible at this stage to convert it to paper format

5.11. Contingency invoicing

This refers to the process for e-invoicing if any mandatory infrastructure is inaccessible. If temporary measures are available, or allowed, to facilitate invoicing during the downtime.

There are no specific prescriptions in this respect in France.



6. Document content requirements

6.1. Document types

Item	Commentary
Documents mandatory for issuance by supplier	• Complete invoice (<i>Facture</i>) • Simplified invoice
Documents mandatory for issuance by buyer	• N.a.

Item	Commentary
Self-billing allowed	• Yes
Simplified invoice allowed	• Allowed if the amount of the invoice excl. Tax does not exceed EUR 150

6.2. Document numbering

This section outlines the requirements to the sequential numbering of invoices and, where applicable, other documents.

6.2.1. Document numbering by the taxpayer

Item	Commentary
A sequential number, based on one or more series, which uniquely identifies the invoice	• Yes
Different series of sequential numbers allowed (e.g. a separate sequential numbering for intercompany billings, credit notes, etc.)	• Yes, French tax authorities indicate that the numbering of invoices can be established using separate series when the conditions of the activity of the taxable person justify it. The taxable person must make use of the separate series in accordance with its initial justification.
Allowed to start a new sequential numbering every year	• Yes

Worldwide numbering on legal entity level allowed provided that gaps can be explained	• Yes
Required that the numbers follow the date of issuance (i.e. is it true that an invoice with number 2 cannot have an invoice date older than the invoice with number 1)	• Yes

6.3. Indirect tax (IT)⁷ rates

This section illustrates the applied IT⁸ rates and provides a non-exhaustive list with examples of goods and/or services that fall within specific IT rates. IT rates that differ between different administrative units are clearly outlined.

Indirect tax rates		
20%	Standard	All other taxable goods and services.
10%	Reduced	Some foodstuffs; some pharmaceutical products; domestic passenger transport; intra-community and international road (some exceptions) and inland waterways transport; admission to amusement park (with cultural aspect); pay/cable TV; some renovation and repairs of private dwellings; some cleaning in private households; some agricultural supplies; hotel accommodation; restaurants (excluding alcoholic beverages); some domestic waste collection; certain domestic care services; firewood; take away food; bars, cafes and nightclubs; cut flowers and plants for decorative use.
5,5%	Reduced	Some foodstuffs; water supplies, medical equipment for disabled persons; books (excluding those with pornographic or violent content); e-books; admission to certain cultural events; writers and composers; some social housing; admission to sports events; some domestic care services; cut flowers and plants for food production, services for laying, installing, and maintaining charging infrastructure for electric vehicles, defined as charging infrastructures installed in residential premises and intended for residents.
2,1%	Reduced	Some pharmaceutical products; some newspapers and periodicals; TV licence.
	Exempt	Financial transactions, buildings completed for more than five years, insurance, education, health and welfare, betting and gaming.

For IT purposes, the territory of France includes Corsica and Monaco. The Overseas Dependencies of Guadeloupe, Martinique and Réunion are considered to be non-EU countries, although French IT is applicable in these territories (with specificities). IT does not apply in French Guiana and Mayotte. Following special rates apply to these territories:

a) Corsica

⁷ For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

⁸ Local name: Taxe sur la Valeur Ajoutée [TVA]

- 0,9% - the first performances of some shows, sales of live meat and charcuterie animals to persons not liable to pay tax,
- 2,1% - some goods supplied in Corsica and some services to which the reduced rates are applicable in mainland France,
- 10% - certain work on immovable property, agricultural equipment, certain supplies of furnished lodging, and sales for consumption on the premises, sales of electricity supplied at low voltage.
- 13% - petroleum products,
- The standard rate applicable in Corsica is the same as in the rest of the country: 20%.

b) DOM

In the overseas departments, but not French Guiana and Mayotte, a reduced rate of 2.10% and a standard rate of 8.5% are applicable and the rates of 1.05 % and 1.75 %, respectively.

c) Monaco

Goods and services supplied to or from the Principality of Monaco are regarded as having been supplied to or from France.

6.4. Mandatory IT invoice content

The section below illustrates the minimum legal requirements related to the content of invoices issued according primarily to the indirect tax regulations of France. Please note that other additional content requirements might apply in addition, i.a. of technical character.

General	
Required to mention the word "invoice"	• No, but recommended
Required that the invoice is issued in the language of the country who is entitled to impose the invoice requirements:	• No • But the French tax authorities are entitled to claim a translation
Sequential numbering	• Yes
Required to mention copy or duplicate in case a copy is issued	• No, but recommended
Reference in case of outsourced issuance	• Invoices must clearly indicate that they are issued in the name and on behalf of the supplier

Supplier data	
Full legal name of the supplier	• Yes
Allowed to abbreviate or shorten the legal name of the supplier	• No

Full address of the supplier in country of establishment	• Yes
Allowed to mention the PO box address instead of the legal address of the supplier	• Yes, provided that the legal address is clearly indicated as well
IT identification number/sales tax number from the supplier in the country where the supply takes place for IT purposes	• Yes, if a registration is available in the country of supply
IT identification number of the supplier in the country of establishment	• Yes • The invoices must indicate the IT number of the supplier, under which the supply is made
Information (i.e. name, address, IT number) of the fiscal representative of the supplier (if appointed)	• Yes
Legal form of the supplier	• Yes
Trade register number of the supplier	• Yes
Company Registry data of the supplier (e.g. court registration, address of chamber of commerce)	• Yes
Place of legal seat of the supplier (Headquarters)	• Yes
Other supplier data	• Yes, registered share capital for established companies • (SARL/SA/SCA/SAS/SE/Sociétés civiles i.e. private limited liability company, public limited liability company, limited partnership, simplified joint stock company, European society, civil society)

Customer data	
Full legal name of the customer	• Yes
Allowed to abbreviate or shorten the legal name of the customer	• No
Address of the customer in country of establishment	• Yes
Bill-to address when it is different from the registered address of the customer	• Yes
Allowed to address the invoice to a Post Office Box address instead of the legal address of the customer	• Yes, provided that the legal address is clearly indicated as well
IT identification number in the country where the supply takes place for IT purposes in case of domestic supplies (if available)	• Yes, but only on invoices for which IT is due by the customer (reverse charge)

IT identification number of the customer in the country of dispatch for invoices issued for exempt export supplies	No
IT identification number of the customer in another Member than the Member State of dispatch for intra-Community supplies	Yes
Information (i.e. name, address, IT identification number) of the fiscal representative (if customer has appointed a fiscal representative)	Yes, In the case where the fiscal representative is the person liable for the payment of VAT
Other customer data	No

Transaction data	
Date of issue	Yes
Date of supply (chargeable event)	Only if it differs from the invoice date
Date of prepayment	Yes
Description of the goods/services	Yes
Quantity of the goods supplied or the extent of the services supplied	Yes
Purchase order number	Yes, from a commercial law perspective, invoices must mention the purchase order number when it has been previously established by the buyer. If a purchase order does not exist, there is nothing to report on the invoice.
Shipped from location (for the supply of goods)	No, but recommended
Shipped to location (for the supply of goods)	No, but recommended
Status of the goods (e.g. in bond, in free circulation)	No
Incoterms	No, but recommended
Other information on the supplied goods/services required (except in case of intra-Community supply of new means of transport)	- Specific mentions are required for supplies to public auctions - Date of payment required by the commercial law

Financial data	
Taxable base per item (unit price excl. IT)	Yes
Total taxable base per IT rate or exemption	Yes
IT rate applied	Yes
Total IT amount calculated per rate	Yes
Total IT amount payable	Yes

Discounts/rebates if not included in the unit price	• Yes
Total gross amount (including IT)	• No, but recommended
Mandatory to mention the total IT amount due in the national currency	• Yes, the public guidelines issued by the French tax authorities indicate that amounts appearing on the invoice may be expressed in any currency provided that the amount of VAT to be paid is determined in euros, using the conversion mechanism provided by the French tax code.
Which other amounts (i.e. none, only the total IT amount) must be mentioned in the national currency of your country	• None, only the total IT amount
Exchange rate (if the invoice is not issued in the local currency)	• No, but recommended
Which exchange rate must be applied in order of priority	• The daily exchange rate from the European Central Bank
Terms of payment	• Yes, Commercial law requires that the invoice mentions the date on which payment must be made, the discount conditions applicable in case of payment on a date prior to that resulting from the application of the general conditions of sale, the rate of penalties payable the day following the date of payment indicated on the invoice as well as the amount of lump sum compensation for recovery costs due to the supplier in case of late payment.
IBAN and BIC number of supplier	• No

Specific references for invoices	
Invoice reference in case of IT exemption or reverse charge	• Yes
List the required references in case of exemption or reverse charge	• For exemption: reference to the Article of the French tax Code or the VAT Directive or any mention referring to the exemption applied • For reverse charge: "Autoliquidation"
Allowed to refer to the appropriate provision in Directive 2006/112/EC for: - "reverse charge" for supplies subject to a reverse charge mechanism; - "supply is taxable in the country of the recipient" for B2B supplies of services; - "exempt intra-Community supply - article 138 VAT	• Yes

Directive"; - "Exempt export - article 146 VAT Directive"; - "simplification for triangular sales - article 141 VAT Directive - " Transfer of own goods- article 17 VAT Directive"?	
Required to specifically mention 'margin scheme - travel agencies', 'margin scheme - second hands goods', if applicable	• Yes
Reference required if the transaction takes place outside the EU as a result of the Use and enjoyment provisions	• No, but recommended
Specific other reference required, e.g. in case of barter transaction, prepayments, etc. (not self-billing or special margin schemes)	• Specific mentions are required for supplies to public auctions. Invoices must require, separately, the auction price of the property, taxes, duties, levies and duties as well as ancillary costs such as commission, packaging, transport and insurance costs requested by the organizer from the buyer of the property when made by an organizer of public auctions acting in its own name, subject to the profit margin regime mentioned in I article 297 A of the French tax code. Such invoices must not disclose VAT.
Specific references required in case invoicing is outsourced	• Invoices must clearly indicate that they are issued in the name and on behalf of the supplier
Reference to 'cash accounting scheme' in B2B sales in case the IT is due by the supplier upon receipt of the payment/IT is deductible by the customer upon payment	• No, but recommended
Other specific requirements/references to be mentioned on an invoice	• Registered shared capital for joint-stock companies

6.5. Simplified invoice

The Supplier is not always obliged to issue a complete invoice. In certain scenarios, they may be able to issue a so-called simplified invoice.

Simplified invoicing	
Possible to issue simplified invoices for certain supplies	• Yes
Maximum amount for simplified invoices	• EUR 150,00 exclusive of IT • Exceptions: distance sales, VAT exempt intra-EU deliveries

Other supplies for which a simplified invoice can be issued	• Invoices relating to supplies made by a French supplier to an EU Customer, where the Customer is liable for the payment of the EU IT under the reverse charge mechanism • Toll tickets • Car park tickets • Restaurant receipts
Simplified invoices limited to certain type of supplies	• Yes
Simplified invoices not allowed for certain transactions	• Yes
Minimum content requirements on a simplified invoice	• Name and address of the supplier or the service provider • The date the invoice is issued • The description of the goods and services, as well as the quantity • The date of delivery of the goods, or provision of service where applicable • The invoice number • The payment term • Invoices for an amount lower than 150€ exclusive of VAT: it is allowed that the invoice does not include the VAT number of the supplier and the reference to the VAT exemption applicable (except if such references are required by another article of the French tax code) • Invoices relating to supplies made by a French supplier to an EU customer, where the customer is liable for the payment of the EU VAT under the reverse charge mechanism: it is allowed that the invoice does not include the unit price exclusive of VAT, the tax rate applicable, the discount and the VAT amount to be paid
Invoices subject to the national invoice requirements (not self-bills)	• Invoices issued by an established supplier that are taxable in our country • Invoices issued by a non-established supplier on which VAT is due by the supplier • Invoices issued by an established supplier that are taxable in another country but where VAT is due by the customer
(other) Invoices subject to the national invoice requirements (not self-bills)	• Invoices issued by an established supplier for supplies of goods or services that are not considered taxable in the EU in respect of Title V of Directive 2006/112/CE. • Invoices issued in respect of services supplied via electronic means for which the supplier claims for the specific regime provided for by Article 298 sexdecies F and 298 sexdecies G of the French tax code.

Pagero Online does not support the creation of simplified invoices as they typically do not correspond to the business requirements of Buyers.

6.6. Rectification document

In France, corrective invoices must be issued as rectification documents. A corrective invoice should include at least the following information:

Specific references for rectification documents	
Must the word "credit note" be mentioned	• Yes
Reference to original invoice required on a credit note	• Invoice number and date
Clear indication required that the amount mentioned on the credit note is crediting earlier amount (e.g. minus sign '-')	• No, but recommended
Reason for credit required	• No

Sequential numbering	
Separate sequential credit note numbering required	• Yes
Allowed to issue one credit note to correct different invoices	• Yes • If it is impossible to mention the reference to the initial invoice (e.g.: end-of-year discounts), credit notes can refer to several invoices or to the contract to which the invoices relate. In this case, the credit note must specify the period during which these invoices were issued

Pagero Online creates corrective invoices according to the content requirements of the Complete invoice.



7. Integrity and Authenticity

Ensuring the integrity of the content, as well as the authenticity of the origin (I&A) of an invoice, is an obligation for both the Supplier and the Recipient.

The purpose of this section is to further clarify the local I&A requirements on B2B invoices, as well as outline whether different requirements apply to B2G invoices. The review is done both from the Supplier’s and the Recipient’s perspective, as varying rules may apply.

Item	Supplier	Recipient
Whether it is mandatory to ensure I&A in the jurisdiction	• Yes	• Yes
Which methods for ensuing I&A are provisioned for	• Any means Business Controls, EDI, e-signature or local RGS accepted • For PDF invoices e-Signature or RGS required if no audit trail	• Any means Business Controls, EDI or e-signature Validation accepted
Which requirements apply for I&A methods if ensured by a third-party (outsourcing)	• Authorization can be explicit or tacit (then, each invoice must state "issued in name and on behalf of the supplier")	• No explicit requirements, but ex analogia application of eSignature outsourcing

7.1. e-Signature

Even where e-signature is not an explicit requirement, Pagero recommends that our customers apply it as, globally, it is the most widely accepted legal means of ensuring I&A for business transactions.

In practical terms, this results in the same evidential position for e-Documents as for paper documents. This unique feature of e-signature provides an exceptional level of legal certainty.

Item	Commentary
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e-Signature technical requirements	• Minimum Qualified or RGS level 2 e-signature
Automated e-signing	• No explicit requirements
Time-stamping of e-signature	• The time of invoice issuance must be ascertainable

7.2. e-Signature validation

The Recipient of an invoice is often required by law or practice to validate the e-signature on the received invoice. Even for countries where the validation-upon-receipt is not expressly regulated, this is recommended by Pagero for both trading partners to be able to guarantee I&A.

Item	Commentary
Validation upon receipt	• Required if e-signature / e-seal is applied
Time-stamping of validation data	• No explicit requirements



8. Document retention

This section describes archiving requirements regarding the e-Invoicing process and documents handled by Pagero. Please note, additional archiving requirements may apply to your specific documents.

Item	Commentary
Components to be stored (e.g. tax invoice, source documents, audit trail, I&A proof)	• Original invoice with signature including certificate or other evidence of integrity and authenticity as appropriate
Requirements to present stored documents in a specific audit format	• No requirements for capabilities to transform to audit format
Legibility, i.e. the ability to read stored e-documents by an untrained eye	• Required
Legibility requirements	• If the original invoice is in a machine-readable format, the taxable person must offer means to provide human-readability
Retention period for invoices not related to immovable property⁹	• 6 years, according to accounting regulations • 10 years, according to the commercial regulations • It is recommended to follow the commercial regulations
Start point of retention period calculation for invoices not related to immovable property	• From the date of issue
Retention period for e- invoices related to immovable property	• 6 years, according to accounting regulations • 10 years, according to the commercial regulations • It is recommended to follow the commercial regulations

⁹ Pagero stores all documents for 90 days due to data privacy and security regulations, after which the data is automatically deleted, unless Archive has been selected. Pagero provides long term archiving (for the legally required term, plus one year)

Start point of retention period calculation for invoices related to immovable property	From the date of issue
Retention period for other than regular invoices or invoices related to immovable property (if existing):	N.a.
Start point of retention period calculation for other than regular invoices or invoices related to immovable property:	N.a.
Outsourced archiving	Allowed
Archiving abroad¹⁰ and conditions, if any (e.g. notification, derogation, online access, mutual tax assistance treaty)	- Permitted in EU subject to prior notification and online access - Outside of EU additionally subject to the existence of a mutual tax assistance treaty or a treaty to ensure online access, download and usage of all tax relevant data - It is mandatory to declare the place of storage of the invoices as well as any modification of this place when it is located outside of France
Other requirements in relation to electronic document retention	Invoices must be printable from the archive upon request

¹⁰ In certain situations or jurisdictions deviating requirements – typically regarding archiving abroad – may apply to invoices and related documents, e.g. concerning matters of defence and national security. Therefore, Pagero encourages customers to inquire for and receive an explicit written statement from the local tax authority stating that the archiving of such documents outside of the taxpayer's country is permitted. Pagero in a capacity of a third-party may not apply for derogations or clarifications of this nature on behalf of a taxpayer.



9. Other transactional documents

Along with invoices, countries may have regulations relating to other trading documents. The purpose of this section is to provide a selective (not exhaustive) overview of the regulation of other transaction-related documents of importance.

Document	Commentary
Purchase order	• No explicit requirements
Rectification document	• Yes, see section 6.6 above
Payment instruction	• No explicit requirements
SAF-T (or alike) reporting	• Yes, see section 10.5 further
Transportation documents	• No explicit requirements
Other	• Special summary documents, see section 10.4 further



10. Other requirements

This section highlights certain aspects of the local regulations and infrastructure that differ from Pagero's General invoice processing and our standard country compliance investigation.

10.1. Penalties

Penalty in France is 250€ per data transmission with a cap at 15 000€ per civil year.

10.2. E-reporting

Entities must provide a FEC file ("Fichier des Ecritures Comptables" (close to SAF-T) upon tax authorities request. Implementation of e-reporting obligation as from 1st July 2024: For companies established in France: mandatory e-reporting is applicable for the transmission of data related to (i) B2C transactions and (ii) B2B cross border transactions (purchases and sales). In addition, companies will have to report the payment data for services. For foreign companies having a French VAT number: mandatory e-reporting for the transmission of data.

Scope

Established and non-Established entities. The e-reporting obligations apply to all transactions which fall under the French VAT scope but are not covered by the mandatory e-invoicing related to (i) B2C transactions and (ii) B2B cross border transactions (only sales).

Summary of the types of data to be reported

B2B data: similar to the data to be reported on invoices (except that for the SIREN number of the client - to be replaced by the EU VAT number for instance) a foreign number could replace the SIREN if applicable). B2C data: aggregated data is possible and will be limited to amongst other: period, net amount, VAT amount, category (subject to VAT or not subject to VAT). In case of provision of services, the transaction payment data must be transmitted to tax authorities except where the supplier made an option for the payment

of VAT on the basis of the accruals or where the transaction is subject to VAT reverse charge by the client.

Submission process

Data shall be forwarded via the Public Invoicing Portal ("portail public de facturation" - PPF) or via a registered private platform ("plateforme de dématérialisation partenaire" - PDP), upon choice.

E-Reporting file format

- Type: Other
- Additional information: UBL, CII, Factur-X

Submission frequency

The frequency of data transmission for e-reporting will depend on the VAT taxation regime of the taxable entities. For instance, the transmission frequency will be 3x per month for taxpayers filing monthly VAT returns. The frequency of payment data will be 1x per month for taxpayers filing monthly VAT returns.

Implementation date

- As for 01/07/2024 - Mandatory e-reporting for large enterprises
- As for 01/01/2025 - Mandatory e-reporting for intermediate sized enterprises
- As for 01/01/2026 - Mandatory e-reporting for small and medium-sized enterprises and micro-enterprises

10.3. Taxpayer categorisation

The gradual roll-out of mandatory domestic B2B e-invoicing will start on July 2024 and can be divided into four main groups, sorted by size of the company, in numbers of employees, Turnover and by balance sheet. The four categorisations are:

- Large business (Grandes)
 - Number employees: ≥ 5.000 FTE, or
 - Turnover: $\geq 1,5$ BEUR, or
 - Balance sheet: ≥ 2 BEUR
- Medium business (ETI)
 - Number employees: ≥ 250 FTE, or
 - Turnover: ≥ 50 MEUR, or
 - Balance sheet: ≥ 43 MEUR
- Small business (PME)
 - Number employees: ≥ 10 FTE, or
 - Turnover: ≥ 2 MEUR, or
 - Balance sheet: ≥ 2 MEUR
- Micro business (TPE)
 - Number employees: < 10 FTE, or

- Turnover: < 2 MEUR, or
- Balance sheet: < 2 MEUR

As the first steps of the mandates comes into place by 2024, France will start from the largest companies (Grandes) in July 2024, Medium businesses (ETI) in January 2025 and with Small and Micro businesses (PME & TPE) in January 2026.

10.4. Implementation of Directive 2014/55/EU

To facilitate the desired large-scale expansion of B2G electronic invoicing and to become compliant with the requirements of Directive 2014/55/EU, Chorus Pro has initiated a formal RFP process to identify a technology partner that can receive invoices based on the emerging PEPPOL standard and officially become the PEPPOL Access Point for Chorus Pro.

[Pagero has been chosen](#) as single PEPPOL Access Point for Chorus Pro.

All B2G invoices are centralized in Chorus Pro , developed and run by AIFE (French Agency for State Finance computing):

- **4 models of connection** have been made available (depending on the size of the company):
 - EDI
 - API
 - Portal
 - Peppol
- As a Supplier, one should know that some **Recipients behind CPP might have additional requirements** to the e-invoice in excess of the [mandated by the law](#). The legal commitment is probably the most common one. In short, there are three legal commitment types that a customer could request:
 - Buyer's contract/agreement number – "Contract"
 - Contract/agreement number – "Marché Public"
 - Buyer's order number – "Engagement juridique"
- **Routing codes: Customers behind CPP** will have the following identification type(s):
 - All recipients behind CPP: [SIRET](#)
 - In addition to the SIRET, several customers may require a "Service Code" in order to distinguish between different units/departments or cost centres within the same entity. One SIRET could be linked to several service codes. The customer has to inform the supplier which service codes to use. There is an official directory of French public entities with SIRET numbers and routing codes, published and regularly updated by AIFE.
- **Suppliers** have to use the following **identification type(s)**:

- For suppliers registered in France: SIRET
- For suppliers registered in the European Union: IT Number
- For suppliers registered outside EU: Country code + first 16 characters of company name
- For suppliers in New Caledonia: RIDET number (six or seven digits [seven digits since 2010], corresponding to the company *, to which three digits are added to distinguish each establishment)
- For suppliers in French Polynesia: Tahiti number (first 6 digits is company, last 3 digits is facility)

10.5. Excluded entities of Chorus Pro

The obligation of reception is excluded (non-exhaustive list):

- Overseas communities (i.e. Saint Martin, French Polynesia, Wallis and Futuna, New Caledonia and French Southern Antarctic Lands) except St. Pierre and Miquelon and Saint Bartholomew;
- national and local public interest groups (GIPs);
- independent public authorities (IPAs);
- public health sanitary cooperation groups (GCS);
- other forms of cooperation in the health field:
 - inter-hospital union,
 - hospital community of territory,
 - hospital group of territory;
- social and medico-social cooperation groups (GCSMS);
- authorized trade union associations;
- rural land associations;
- semi-public companies.

More information can be found [here](#).

10.6. Summary documents

The French Tax Code requires all taxable persons both suppliers and buyers (even if a third party has issued or received invoices in their name and on their behalf) create additional summary statements:

The **Trading partner list** of all partners with whom taxable person exchange eInvoices as supplier or recipient, including the following information on each partner:

- name and address,
- indication sender/receiver,
- start date of eInvoices, and
- optionally the end date

The **Summary report** the taxable person must ensure that a sequential recapitulative list of all the messages transmitted or received and any anomalies they may contain is kept

and stored on paper or data medium during the storage period. Its integrity must be ensured. The summary report should include at least the following information:

- the number and date of the invoice,
- the date and time the message was created,
- the transaction amounts tax excluded and included, and the currency code if invoice not in EUR,
- information related to the identity of the supplier/recipient (code, name or company name, SIRET or SIREN, address, supplier/customer capacity),

Both files have to be archived by the parties during a period of at least 10 years.

10.7. SAF-T (FEC) reporting

Since January 2014, French companies that keep their accounts using IT systems are required to provide the tax authorities with a file of accounting entries ('*Fichier des Ecritures Comptables*' or '*FEC*') for the purpose of tax audit. This obligation also concerns businesses based outside France to the extent that they are registered for IT purpose and carry out transactions for which they need to file IT returns in France.

The implementation of this file is a spin-off from SAF-T (Standard Audit File for Tax), which is a recommendation of the OECD. The FEC report does not have to be reported to DGFIP on regular basis, like in some other EU Member States, however, it must be available and be provided at once at the time of tax audit, for each of the last 3 financial years. The FEC report must comply with the following format requirements:

- One single file per fiscal year, and
- A flat-file or XML format respecting the XSD structure available on impots.gouv.fr

The FEC report should hold as minimum the following information:

- | | |
|--|-------------------------|
| • General journal entry code | • Lettering date |
| • General journal entry name | • Entry validation date |
| • Continuous sequential entry organisation | • Currency amount |
| • Entry balance date | • Currency identify |
| • Account number | |
| • Account name | |
| • Sub ledger account number | |
| • Sub ledger account name | |
| • Supporting document reference | |
| • Date of the supporting document | |
| • Entry name | |
| • Debit amount | |
| • Credit amount | |
| • Entry lettering | |

The French government provides a free software which can be [downloaded here](#), in order to test the compliance of the created FEC reports



11. Country-specific processing

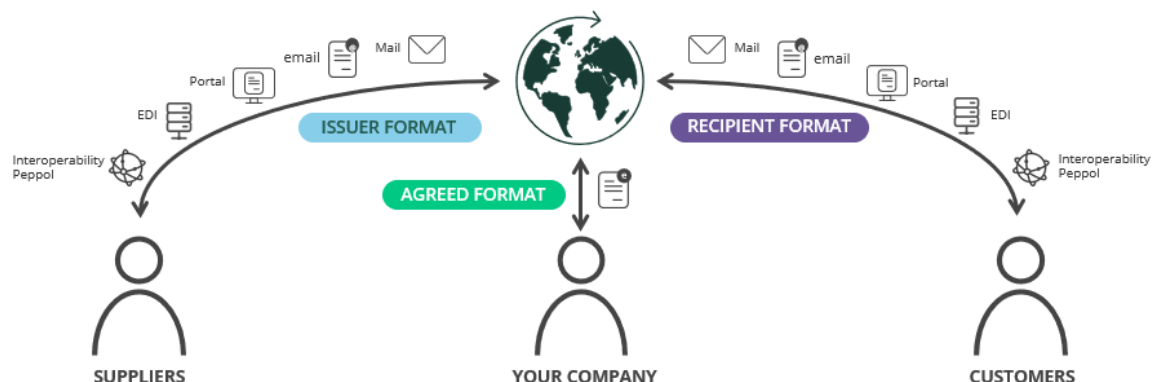
This section outlines how the Pagero General e-Invoicing process has been adapted to the local requirements to ensure compliant local processing.

In order to ensure conformity with the French B2G e-Invoicing regulations, Pagero has implemented the following deviations to our standard eInvoice processing:

- SFTP protocol with RSA keys used for authentication, certificate to generate keys is issued by French Certificate Authorities.

As both the Summary documents and the FEC reporting include all invoices, i.e. both paper and electronic, (and additional data elements in case of FEC) and in case of electronic invoices both those that pass through and those that pass outside of Pagero Online, it is not possible for Pagero to support our customers with these features in a satisfactory way.

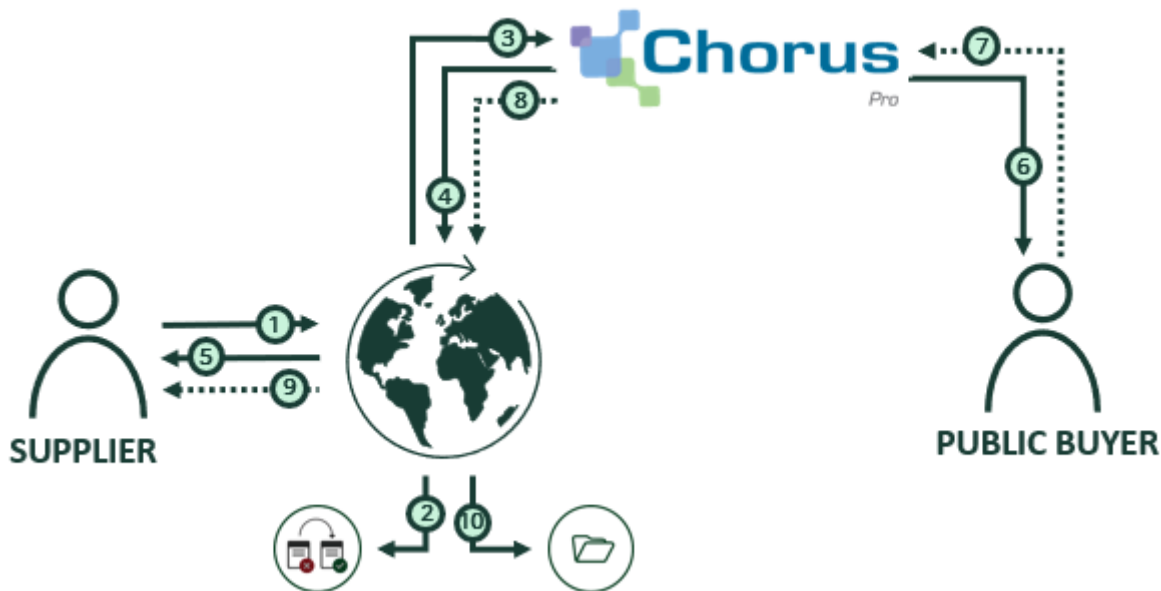
11.1. B2B document issuance (AR) and reception (AP) with Pagero



(1) PAGERO ensures that documents can be exchanged with your company and your suppliers and customers, from your company perspective in a single format to ensure 100% digital AR and AP processing, while on the other hand in the preferred format and exchange mechanism with your trading partners.

- (2) PAGERO ensures the country-specific document content, document integrity and authenticity, as well as archiving requirements.
- (3) PAGERO supports unlimited number of document formats and multiple exchange mechanisms.
- (4) PAGERO supports such exchange channels as: Interoperability, Peppol, EDI, portal, e-mail, capturing / scanning, etc.

11.2. B2G document issuance (AR) with Pagero



- (1) Supplier provides data in supplier preferred format to Pagero.
- (2) Pagero does the conversion of the document to the mandatory format.
- (3) Pagero sends the e-document to Chorus Pro.
- (4) Pagero receives receipt confirmation from Chorus Pro.
- (5) Pagero sends receipt confirmation to supplier in supplier preferred format.
- (6) BSP/buyer fetches or receives the e-document from Chorus Pro in a mandatory format and according to a mandatory exchange protocol
- (7-9) Optional return communication from buyer to supplier
- (10) Pagero archives all relevant document on behalf of the supplier



12. Closing statements

12.1. Confidentiality

This General invoice processing description of Pagero Online, our Country Compliance Reports, and other documents provided by Pagero are of confidential nature and are only intended for and may only be used by Pagero's Customers, their employees or other authorized recipients for the purpose or purposes specified and agreed to between the parties. Descriptions, reports, and documentation may not – neither in full nor in parts – be copied or otherwise distributed to third parties without Pagero's prior written consent.

12.2. Disclaimer

In order to establish a relationship based on trust and transparency with our Customers, Pagero provides its General e-Invoice and eArchiving processing descriptions of Pagero Online as well as Pagero's Country Compliance Reports. These documents are intended to enable our Customers and their tax advisors to assess how Pagero has interpreted the relevant legislation and implemented it in our processes in order to support our Customers to fulfil their legal obligations.

We would like to remind our Customers that, according to tax and accounting regulations, the outsourcing of any process to third parties (such as issuance, compiling, processing, receipt, or archiving of e-Invoices), will not lead to a shift of liability, the liability will remain with the Customer. Accordingly, the taxable person always remains responsible towards the local authorities for ensuring their e-Invoice compliance, and for fulfilling accounting and reporting requirements. We want to emphasise this, in the light of that there can be potentially conflicting regulations on regional, national, or international levels.

Pagero endeavours to only include and provide accurate and up to date information. However, Pagero makes no guarantees as to the accuracy of any statement, information or advice provided by Pagero, whether in writing or verbally. The Customer must make an informed decision about whether to adhere to and follow such recommendations or not. The final decision and responsibility regarding tax, accounting, and reporting issues rest with the Customer.



Revision history

Date	What has changed
2019-08-13	• Document created
2021-06-30	• Section 3 Updated: Information for the 2024 B2B mandate • Section 10.1: Taxpayer categorisation added
2021-11-08	• Document content moved to a new template
10 August 2023	• Section 10.1: added penalties • Section 10.2: added e-reporting